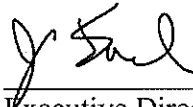


FIRST ENDORSEMENT

Jonathan Darche, Executive Director, Civilian Complaint Review Board to Deputy Commissioner Paul Gamble, Department Advocate's Office, January 2, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-27785 against Police Officer Malcom Liu Tax Registry No. 932906. The case was conferenced on November 14, 2023, before Assistant Deputy Commissioner of Trials Vanessa Facio-Lince who approved the negotiated penalty of a Schedule A Command Discipline with a forfeiture of FIVE (5) vacation days for DADS No. 2023-27785 after accepting the finding(s) of substantiation of the allegations contained in the aforementioned Charges and Specifications which were dismissed for plea purposes.



Executive Director
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2023-27785

BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, LIU	FIRST MALCOLM	M.I. G	COMMAND CENTRAL PARK PRECINCT
SHIELD NO. 8825	TAX REGISTRY NO. 932906	SOCIAL SECURITY NO.	DATE APPOINTED 07/01/2003	

RANK/NAME OF COMPLAINANT	COMMAND	
DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Malcolm LIU, on or about September 12, 2021, at approximately 1145, while assigned to CPK PCT and on duty, in the vicinity of Central Park at East 62nd Street and 5th Avenue, New York County, abused their authority as a member of the New York City Police Department, in that PO LIU threatened to remove § 87(2)(b) to the hospital without sufficient legal authority.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Malcolm LIU, on or about September 12, 2021, at approximately 1145, while assigned to CPK PCT and on duty, in the vicinity of Central Park at East 62nd Street and 5th Avenue, New York County, abused their authority as a member of the New York City Police Department, in that PO LIU searched § 87(2)(b) recording device (cell phone) without sufficient legal authority	DISMISSED	

DC Berlin
FIRST DEPUTY COMMISSIONER

1/16/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

3/11/24
DATE

THIRD ENDORSEMENT

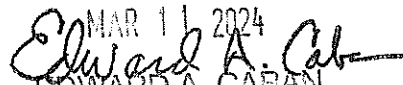
First Deputy Commissioner to Police Commissioner January 16, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case Nos. 2023-27785 against Police Officer Malcolm Liu, Tax #932906, with the recommendation that the Charges and Specifications against Police Officer Liu be dismissed and that Police Officer Liu receive a Schedule "A" Command Discipline and forfeit five (5) vacation days. Assistant Deputy Commissioner, Trials Vanessa Facio-Lince reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

TIK/jpc



Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

APPROVED

MAR 11 2024

EDWARD A. CABAN
POLICE COMMISSIONER